SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER	PAGE	OF
1177253	1	3

2. CONTRACT NO.	3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			12445127Q0005	10/22/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE/LOCAL TIME
	CYNTHIA GRANDERSON	601-965-1619	11/23/2026 0900 CT

9. ISSUED BY — CODE 4451

USDA-FS CSA EAST 11
1720 PEACHTREE ST NW
STE 876S
ATLANTA GA 30309-2449

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: % FOR:

- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 238210

SIZE STANDARD: $19

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE 7J15

USDA FOREST SERVICE
WOMBLE RANGER DISTRICT
PO BOX 255
MOUNT IDA AR 71957-0255

16. ADMINISTERED BY — CODE 4451

USDA-FS CSA EAST 11
1720 PEACHTREE ST NW
STE 876S
ATLANTA GA 30309-2449

17a. CONTRACTOR/ OFFEROR CODE ____ FACILITY CODE ____

TELEPHONE NO.

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE ____

☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	This is a Request For Quote (RFQ) will result in award of a firm-fixed price Contract Award will be made using a Lowest Price responsive/ responsible evaluation. The contractor SHALL BID ALL LINES. Award Methodology: The government intends to *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		CYNTHIA B. GRANDERSON	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	award One (1) Contract based upon overall low bid. All work to be performed under the awarded Contract will be in accordance with the contract terms/conditions and the requirements, including specifications and drawings provided for this project(s): Project Title: Womble Work Center Fiber Optic Installation Original Set Aside: Total Small Business Set-Aside (FAR 19.5) NAICS: 238210 - Electrical Contractors and Other Wiring Installation Contractors PSC N061 installation of equipment- electric wire and power distribution equipment Location(s): This Contract will be executed in the Ouachita National Forest (Montgomery County) Arkansas Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Scope of Work Summarized: The contractor shall provide all materials, labor, equipment, tools, transportation, supervision, expertise, and other incidentals necessary, except as otherwise provided in the contract, to successfully complete the following work on National Forest SCHEDULE: Site Visit: Self-Guided Last Day for Questions: 11/23/2026 BID Submittal Deadline: 11/23/2026; 0900CT Period of Performance: award through 4 January 2027 / AS SPECIFIED ON YOUR SCHEDULE Delivery: 01/04/2027 Period of Performance: 12/01/2026 to 02/01/2027				
0001	The district ranger office is at risk of losing radio communication due to a network adapter to copper phone lines that are not allowed to be on the network. The connection from the office to the work center must be replaced by a fiber optic cable per CIO.				

WOMBLE ADMIN SITE FIBER OPTIC INSTALLATION
SCHEDULE OF ITEMS

#	UNIT	QUANTITY	UNIT COST	ITEM DESCRIPTION	TOTALS
1	LN FT	1300		**PROVIDE ALL LABOR AND MATERIALS TO INSTALL 8 FIBER FIBER OPTIC LINE FROM THE OFFICE TO THE WORK CENTER IN 2 INCH CONDUIT**	
TOTAL					

Statement of Requirement - The project is located at 24 Forbes Road, Mt Ida, AR 71957 at the Womble Work Center. The contractor shall provide all labor, tools, equipment, and materials to perform the work listed below per specification.

A. Install two inch non metallic conduit and pull boxes from the Ranger Office to the Work Center 18 inches deep minimum.
B. Install fiber optic cable from the Office network closet to the Work Center network closet.
C. Backfill areas around conduit and pull boxes and disturbed areas to natural grade.
D. Seed, fertilize, and mulch all disturbed areas in accordance with specifications below.

Schedule of Items - Attachment 002 - Schedule of Items.

Technical Data -
Technical data and supporting documentation associated with this solicitation are available through the following sources:

1. Solicitation Attachments
   The following documents are included as attachments to this solicitation and can be accessed via the "Attachments/Links" section of the posting.
   - Attachment 001 – Schedule Of Items
   - Attachment 002 – Performance Work Statement
   - Attachment 003– Wage Determination AR20260047

Project Location
Include information on the project location or information on which attachment(s) the information can be found in.

Project locations are listed in:
Attachment 002 – Performance Work Statement

Definitization of Equitable Adjustments for Change Orders -

Pursuant to FAR 36.101-4(b), information regarding USDA's definitization of equitable adjustments for change orders under construction contracts may be found at Contracting with USDA under "Federal Acquisition Regulation 36.101-4". USDA's procedures that apply to the definitization of equitable adjustments for change orders under construction contracts may be found in AGAR 443.304 -70.

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may ;lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

The following clauses are mandatory in all solicitations and contracts - Do not delete these.

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
☐ Alternate I (Nov 2025) of 52.212-4

This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance*. Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes.* Changes will be handled in accordance with the following FAR clause(s):
☐ FAR 52.243-4, Changes (Nov 2025)
☒ FAR 52.243-5, Changes and Changed Conditions (Nov 2025)

(o) *Warranty.* FAR 52.246-21, Warranty of Construction is applicable to this contract.

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50 Combating Trafficking in Persons (Nov 2025)
☐ Alternate I (Nov 2025) of 52.222-50
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3 Protest After Award (Sep 2025)

52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91 Security Prohibitions and Exclusions (Nov 2025)
☐ Alternate I (Nov 2025) of 52.240-91
52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked: You can either leave all clauses and check the boxes of the ones that apply or delete the clauses that do not apply. If you delete lines, you will need to right-click on the box and select "remove content control" before it will delete.

☐ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
☐ 52.204-91 Contractor identification (Nov 2025)
☐ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
☐ Alternate I (Mar 2020).
☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
☐ Alternate III (Nov 2025) of 52.219-9.
☐ Alternate IV (Nov 2025) of 52.219-9
☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
☒ 52.222-3 Convict Labor (June 2003)
☒ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
☐ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
☐ Alternate I (Jul 2014) of 52.222-35
☐ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
☐ Alternate I (Jul 2014) of 52.222-36
☐ 52.222-37 Employment Reports on Veterans (Nov 2025)
☐ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Aircraft Mechanic	$XX.XX

☐ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
☐ 52.222-54 Employment Eligibility Verification (Nov 2025)
☐ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
☐ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
  ☐ Alternate I (May 2008) of 52.223-9
☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
☒ 52.223-23 Sustainable Products and Services (Nov 2025)
☐ 52.224-3 Privacy Training (Jan 2017)
  ☐ Alternate I (Jan 2017) of 52.224-3
☒ 52.225-1 Buy American-Supplies (Nov 2025)
  ☐ Alternate I (Oct 2022) of 52.225-1
☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
  ☐ Alternate II (Nov 2025) of 52.225-3.
  ☐ Alternate III (Nov 2025) of 52.225-3.
  ☐ Alternate IV (Oct 2022) of 52.225-3
☐ 52.225-5 Trade Agreements (Nov 2023)
☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)

☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
☐ 52.229-12 Tax on Certain Foreign Procurements
☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
☒ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
☐ 52.232-36 Payment by Third Party (Nov 2025)
☐ 52.240-92 Security Requirements (Nov 2025)
☐ Alternate II (Nov 2025) of 52.240-92
☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (Nov 2025)
☐ 52.242-13 Bankruptcy (July 1995)
☐ 52.246-21 Warranty of Construction (Mar 1994)
☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
☐ Alternate I (Apr 2023) of 52.247-64.
☐ Alternate II (Nov 2021) of 52.247-64

The Contractor shall comply with the following FAR Clauses for Commercial Construction.

The following clauses are required for all solicitations and contracts in excess of $2,000 for construction within the United States so will more than likely always be applicable.

52.222-6 Construction Wage Rate Requirements (Nov 2025)
52.222-7 Withholding of Funds (Nov 2025)
52.222-8 Payrolls and Basic Records (Nov 2025)
52.222-9 Apprentices and Trainees (Nov 2025)
52.222-10 Compliance with Copeland Act Requirements (Nov 2025)
52.222-11 Subcontracts (Labor Standards) (Nov 2025)
52.222-12 Contract Termination-Debarment (May 2014)
52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations. (May 2014)
52.222-14 Disputes Concerning Labor Standards (Nov 2025)
52.222-15 Certificate of Eligibility (May 2014)
52.236-5 Material and Workmanship (Jul 2025)

The following clauses are applicable when checked:

☐ 52.222-30 Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Pricing Method (Aug 2018)
☐ 52.222-31 Construction Wage Rate Requirements-Price Adjustment (Percentage Method) (Aug 2018)

☐ 52.222-32 Construction Wage Rate Requirements-Price Adjustment (Actual Method) (Nov 2025)
☐ 52.225-9 Buy American-Construction Materials (Nov 2025)
☐ Alternate I (Oct 2022) of 52.25-9
☐ 52.225-11 Notice of Buy American Requirement-Construction Materials under Trade Agreements (Nov 2025)
☐ Alternate I (Nov 2025) (of 52.225-11
☐ Alternate II (Oct 2022) of 52.225-11
☐ 52.228-2 Additional Bond Security (Oct 1997)
☐ 52.228-5 Insurance-Work on Government Installation (Jan 1997)
☐ 52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
☐ 52.228-13 Alternative Payment Protections (Jul 2020)
☐ 52.228-14 Irrevocable Letter of Credit (Nov 2014)
☐ 52.228-15 Performance and Payment Bonds-Construction (Jun 2020)
☐ 52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee) (Feb 2021)
☐ 52.236-2 Differing Site Conditions (Jul 2025)
☐ 52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)
☐ 52.236-6 Superintendent by the Contractor (Jul 2025)
☐ 52.236-7 Permits and Responsibilities (Jul 2025)
☐ 52.236-8 Other Contracts (Jul 2025)
☐ 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
☐ 52.236-10 Operations and Storage Areas (Jul 2025)
☐ 52.236-11 Use and Possession Prior to Completion (Jul 2025)
☐ 52.236-12 Cleaning Up (Jul 2025)
☐ 52.236-13 Accident Prevention (Jul 2025)
☐ Alternate I (Nov 1991) of 52.236-13
☐ 52.236-14 Availability and Use of Utility Services (Jul 2025)
☐ 52.236-15 Schedules for Construction Contracts (Jul 2025)
☐ 52.236-16 Quantity Surveys (Jul 2025)
☐ Alternate I (Apr 1984) of 52.236-16
☐ 52.236-17 Layout of Work (Jul 2025)
☐ 52.236-21 Specifications and Drawings for Construction (Jul 2025)
☐ Alternate I (Apr 1984) of 52.236-21
☐ Alternate II (Apr 1984) of 52.236-21
☐ 52.242-14 Suspension of Work (Apr 1984)
☐ 52.248-3 Value Engineering (Oct 2025)
☐ Alternate I (Apr 1984) of 52.248-3

AGAR Clauses

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf

Clauses in black are required in all solicitations and contracts.

AGAR 452.203-70 Unenforceable Supplier Terms (Sep 2026)

AGAR 452.204-71 Personal Identity Verification and Workforce Integrity of Contractor Employees (Apr 2026)

AGAR 452.232-71 Progress Payments for Commercial Construction Contracts (May 2026)

AGAR 452.236-70 Electronic Submission of Payment Requests (Sep 2026)

Solicitation Information

Award Type

It is anticipated that a Firm Fixed Price will be awarded as a result of this synopsis/solicitation.

The Government reserves the right to make more than one award (multiple awards) for different line items, if, after considering the additional administrative cost to the Government of awarding and administering separate purchase orders, it is determined that the multiple awards will result in the best value to the Government. For purposes of evaluating the cost of making multiple awards, it is assumed that the administrative cost of awarding and administering a purchase order is $500.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Period of Performance

Period of Performance: 60 Days After Notice to Proceed.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this IFB. In lieu of this provision, quotes will be evaluated in accordance with FAR 14.306 based on the criteria listed below. Award will be made to the lowest price that is:

- FAR 14.306-1 Responsive
- FAR 14.306-2 Responsible

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.
The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions
Questions shall be submitted via email to Cynthia.Granderson@usda.gov and are due no later than November 23, 2026, at 8:00 AM Central Time. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked: You can either leave all clauses and check the boxes of the ones that apply or delete the clauses that do not apply. If you delete lines, you will need to right-click on the box and select "remove content control" before it will delete.

☐ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
☒ 52.204-7 System for Award Management—Registration (Nov 2025)
☐ Alternate I (Nov 2025) to 52.204-7
☐ 52.204-90 Offeror Identification (Nov 2025)
☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)

☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
☐ 52.219-2 Equal Low Bids (Nov 2025)
☐ 52.222-5 Construction Wage Requirements, Secondary Site of the Work (Nov 2025)
☒ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment–Certification (Nov 2025)
☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
☐ 52.223-4 Recovered Material Certification (May 2008)
☐ 52.225-2 Buy American Certificate (Oct 2022)
☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
☐ 52.225-10 Notice of Buy American Requirement- Construction Materials (May 2014)
  ☐ Alternate I (May 2014) of 52.225-10
☐ 52.225-12 Notice of Buy American Requirement-Construction Materials under Trade Agreements (May 2014)
  ☐ Alternate I (May 2014) of 52.225-12
  ☐ Alternate II (Nov 2023) of 52.225-12

☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
☐ 52.228-1 Bid Guarantee (Sep 1996)
☐ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

AGAR Provisions

This solicitation incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Protest Procedures

The United States Department of Agriculture (USDA) is committed to fair, transparent, and efficient acquisitions. Interested parties with concerns about this solicitation are encouraged to seek resolution through the following USDA procedures.

Tier 1: Contracting Officer Concern Resolution

Submission: Interested parties with concerns about either the solicitation or subsequent award should first submit their concern directly to the Contracting Officer, providing sufficient detail to allow the Contracting Officer to understand and assess the issue.

Process: The Contracting Officer will review the concern, seek clarification as needed, and engage with the interested party to attempt prompt resolution.

Review Timeline: The Contracting Officer will make every effort to provide a response or resolution within 10 business days of receiving the concern.

Effect on Award or Performance: Tier 1 engagement is not considered an official notification of filing an agency protest and does not pause solicitation deadlines, delay award decisions, or suspend contract performance.

Next Steps: If the matter cannot be resolved at Tier 1, the interested party may file a written agency protest under Tier 2. USDA encourages all parties to seek resolution with the Contracting Officer before filing an agency protest.

Tier 2: Agency Protest

If concerns cannot be resolved at Tier 1, an interested party may file a written agency protest with either the Contracting Officer or the USDA Independent Review Authority. The decision by the USDA Independent Review Authority is an alternative to a decision by the Contracting Officer. The USDA Independent Review Authority will not consider an appeal of the Contracting Officer's decision on an agency protest.

The protest must state whether the protester elects review by the Contracting Officer, by the UDSA Independent Review Authority. If no election is stated, the Contracting Officer will decide the protest.

Required Information: Protests shall include the information set forth in FAR 33.104-4 (a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Submission: Agency protests should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Timeliness: Protests must be filed within the timeframes specified in FAR 33.104.

Effect on Award or Performance: Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined to be in the best interest of the Government.

Review Timeline: USDA strives to resolve agency-level protests within 35 business days of receipt.

Election of Forum: By filing a protest with USDA, the protesters agree not to file a protest on the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If such a protest is filed externally, the USDA agency protest will be dismissed.

Questions: Questions regarding this notice or protest procedures should be directed to the Contracting Officer identified in this solicitation.

SPECIFICATIONS

WOMBLE WORK CENTER FIBER OPTIC INSTALLATION

USDA FOREST SERVICE
OUACHITA NATIONAL FOREST

WOMBLE RANGER DISTRICT
MT IDA, ARKANSAS

SPECIFICATIONS INDEX

- DIVISION 01 00 00 GENERAL REQUIREMENTS
  - SECTION 01 10 00 SUMMARY OF WORK
  - SECTION 01 31 13 COORDINATION
  - SECTION 01 33 00 SUBMITTAL PROCEDURES
  - SECTION 01 45 00 QUALITY CONTROL
  - SECTION 01 77 00 PROJECT CLOSEOUT
- DIVISION 27 00 00
  - SECTION 27 10 00 TELECOMMUNICATIONS CABLING SYSTEM
- DIVISION 31 00 00
  - SECTION 31 05 16 AGGREGATES FOR EARTHWORK
- DIVISION 32 00 00
  - SECTION 32 91 00 PLANTING PREPARATION
  - SECTION 32 92 00 TURF AND GRASSES

DIVISION 01 00 00 GENERAL REQUIREMENTS
01 10 00 – SUMMARY OF WORK

The project is located at 24 Forbes Road, Mt Ida, AR 71957 at the Womble Work Center. The contractor shall provide all labor, tools, equipment, and materials to perform the work listed below per the specification.

A. Install two inch non metallic conduit and pull boxes from the Ranger Office to the Work Center 18 inches deep minimum.
B. Install fiber optic cable from the Office network closet to the Work Center network closet.
C. Backfill areas around conduit and pull boxes and disturbed areas to natural grade.
D. Seed, fertilize, and mulch all disturbed areas in accordance with specifications below.

01 31 13 – PROJECT COORDINATION

The contractor shall perform work in a manner that will protect the safety of public and employees. The contractor shall perform the work between the hours of 8:00 AM and 4:30 PM Monday through Friday excluding Federal Holidays unless arrangements have been made with the COR.

01 33 00 – SUBMITTAL PROCEDURES

The contractor shall furnish submittals on all items they intend to use including the brand names listed in the specifications. Submittals shall be made within fifteen (15) days prior to commencing any work that relates to a respective submittal. Approvals are not automatic. Incomplete information on the proposed items will result in rejection.
The contractor shall submit electronic sets of the manufacturer's description of all "or equals" proposed materials specified. This description shall include:
1) Product name and model number
2) Manufacturer
3) Product description (include sizes if different from specified"
4) Technical data
5) Warranty
All differences between the specifications or name brands listed shall be highlighted on the submittal noting all differences.

01 45 00 – QUALITY CONTROL

It is the Government's intent that expert and experienced workers perform the work described in this contract. The Contractor shall provide workers with the necessary skills and knowledge to complete the work in an expert and competent manor even if this requires bringing in outside help such as factory representatives, subcontractors, or consultants.

01 77 00 – CONTRACT CLOSEOUT

The contractor shall remove all materials, construction debris as well as impacted vegetation from the site.

Contractor shall submit an electronic operation and maintenance manual for all equipment supplied and any warranty registrations that were completed or need to be completed.

DIVISION 27 10 00 TELECOMMUNICATIONS CABLING SYSTEM
PART 1 – GENERAL

A. This section includes:
    a. Installation of two-inch conduit and pull boxes
    b. Installation of fiber optic cable.
    c. Delivery, Storage, and Handling
        i. Protect all materials and equipment delivered and placed in storage from the weather, excessive humidity, and excessive temperature variation; dirt, dust, or other contaminants.

PART 2 – PRODUCT

A. Standard Products:
    a. 2 inch non metallic conduit and pull boxes with lids for direct bury
    b. 8 strand outdoor fiber optic cable with LC connectors and pulling eye.
    c. Provide materials and equipment which are the standard products of a manufacturer regularly engaged in the manufacture of such products and that essentially duplicate items that have been in satisfactory use for at least 2 years prior to bid opening. Equipment items must be supported by service organizations. Submit a certified list of qualified permanent service organizations for support of the equipment which includes their addresses and qualifications. These service organizations must be reasonably convenient to the equipment installation and able to render satisfactory service to the equipment on a regular and emergency basis during the warranty period of the contract.
B. Nameplates:
    a. Supply each major item of equipment.

PART 3 EXECUTION

A. Examination:
    a. After becoming familiar with all details of the work, verify all dimensions in the field, and advise the Contracting Officer of any discrepancy before performing the work.
B. Site Work
    a. Excavate, trench, and backfill the valve boxes as indicated and in accordance with Section 31 00 00 EARTHWORK.
C. Installation
    a. Install material in accordance with published installation instructions of the manufacturer.

DIVISION 31 00 00 EARTHWORK
SECTION 31 05 16 AGGREGATES FOR EARTHWORK

PART 1 – GENERAL

A. This section includes:
    a. General Backfill

PART 2 – PRODUCT

A. General backfill material shall be comprised of existing excavated material. Unless specified otherwise, the maximum particle diameter shall be one-half the lift thickness at the intended location. Lift shall be a maximum of 8”. This material shall be used for backfilling the excavation at the Womble Work Center. The top 6” shall be topsoil.
B. The backfill in the Work Center parking lot shall be washed rock to within 2 inches of the top of the asphalt with the top 2 inches to be approved asphalt patching material.

PART 3 EXECUTION

A. General backfill shall utilize existing fill source and shall meet the backfill criteria from Part 2 Section A. General backfill shall be applied around the conduit and pull boxes. There shall be no rocks placed within 6” of any of the conduit or pull boxes. Such backfill shall have a finish grade consisting of 6” of topsoil.

DIVISION 32 00 00 EXTERIOR IMPROVEMENTS
SECTION 32 91 00 PLANTING PREPARATION

PART 1 – GENERAL

A. Work Included: Excavation and the placement of fills, and the final grading. The areas include the areas disturbed by construction of the project.

PART 2 – PRODUCTS

A. MULCH shall be straw from wheat crops that are free from noxious weeds, mold, or other objectionable material or saved forest cover before excavating.

PART 3 – EXECUTION

A. Grade all disturbed areas to drain.
B. The root structure of all existing trees that are to remain shall not be disturbed if possible.
C. When all work is completed, the contractor shall give the area a final dressing.
D. The areas that are to be seeded shall have all rocks and debris with any dimension larger than 3 inches removed from the area.
E. MULCH shall be straw from wheat crops that are free from noxious weeds, mold, or other objectionable material or saved forest cover.

SECTION 32 92 00 TURF AND GRASSES

PART 1- GENERAL

A. Apply turf establishment to prepared ground or any disturbed area between May 16 and August 31 by the Dry Method and between Sept. 1 and May 15 by either the Dry Method or the Hydraulic Method. Apply turf establishment to the areas shown on the plans or worklists within 14 days after completion of ground disturbing activities. Unless otherwise specified in writing by the CO apply turf establishment after each dispersal field is completed. Seeded areas damaged by construction activities shall be reseeded within 10 days of the damage. Do not seed during windy weather or when the ground is excessively wet, frozen, or snow covered. Ensure that the surface soil is in a roughened condition favorable for germination and growth.
B. Items requiring submittals shall include:
    a) Fertilizers
    b) Seed

PART 2 – PRODUCTS

A. Fertilizer shall have a chemical analysis as listed below.
Fertilizer. Apply fertilizer at the rate of pounds per acre as listed below. Insure that the fertilizer meets the following chemical analysis:
    a) Nutrient Percent Lbs./Acre Percent Lbs./Acre
    b) Nitrogen, N 12 10
    c) Phosphorus, P205 24 600 20 720
    d) Potassium, K 12 10
B. Seed Mix. Furnish and apply the following kinds and amounts of pure live seed:
    a) Quantity of Pure
    b) Time of the Year Type of Seed Live Seed (Lbs./Acre)

c) March 1 to Sept. 15 Browntop Millet 20
d) Sept. 1 to March 15 Annual Ryegrass 20
e) Elbon Rye 25
f) (Also known as Cereal Rye)

C. Determine the pounds of seed to be furnished per acre by dividing the pounds of pure live seed required per acre by the product of the percent purity and percent germination.
D. MULCH shall be straw from wheat crops that are free from noxious weeds, mold, or other objectionable material.

PART 3 – EXECUTION

A. Remove the certification from the bag of seed and give to the COR.
B. Apply fertilizer and seed by the following methods.
1. Dry Method. Apply the fertilizer with approved mechanical equipment. Hand operated methods are satisfactory on areas inaccessible to mechanical equipment.
2. Hydraulic method. Use hydraulic-type equipment capable of providing a uniform application using water as the carrying agent. Add fertilizer to the slurry and mix before adding seed. Apply Mulch within 48 hours after seeding by the following methods.
C. Apply mulch by the following methods.
1. Dry Method. Apply wheat straw mulch anytime of the year with a hand spreader or a spreader utilizing forced air at a rate of 5,000 pounds per acre. Anchor the mulch with an approved stabilizing emulsion tackifier at a recommended rate or approved mechanical. Do not mark or deface structure, pavements, utilities, or plant growth with tackifier.
2. Hydraulic Method. Apply mulch in a separate application after the seed and fertilizer application using hydraulic-type equipment according to Subsection 625.07(b). The hydraulic method is only allowed between September 1 to March 15. Apply wheat straw mulch at a rate of 5,000 pounds per acre or wood cellulose fiber mulch at a rate of 2,500 pounds per acre. Apply so no hole in the matrix is greater than 0.04 inches. Apply so that no gaps exist between the matrix and the soil. Mulching shall NOT be done in the presence of free-standing water.
D. Inaccessible areas may be seeded, fertilized, and mulched by hand. Apply mulch uniformly over the entire disturbed area.

"General Decision Number: AR20260047 05/18/2026

State: Arkansas

Construction Types: Heavy

Counties: Arkansas Counties of
Calhoun, Clark, Columbia, Dallas,
Hempstead, Hot Spring, Howard,
Lafayette, Montgomery, Nevada, Ouachita,
Pike and Sevier

Modification Number	Publication Date
0	01/02/2026
1	05/18/2026

SUAR2015-044 01/09/2017

	Rates	Fringes
TRUCK DRIVER: DUMP TRUCK	$ 13.12	0.00
OPERATOR: BULLDOZER	$ 20.10	0.00
OPERATOR: BACKHOE/EXCAVATOR/TRACKHOE	$ 17.90	0.00
LABORER: PIPELAYER	$ 12.25	0.00
LABORER: COMMON OR GENERAL	$ 12.25	0.00
CARPENTER, INCLUDES FORM WORK	$ 16.41	3.15

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at https://www.dol.gov/agencies/whd/government-contracts.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts

regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract from May 11, 2026, through December 31, 2026. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than "SU", "UAVG", "SA", or "SC" denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The "SU" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by

computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

�SU� wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The �SA� identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the �SA� identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination
b) an existing published wage determination
c) an initial WHD letter setting forth a position on a wage determination matter
d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via

email to dba.reconsideration@dol.gov or by mail to:
Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210
The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:
Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION
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